

10	Pillon vs. Root 30-2025-01476852	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Motion for Leave to File Cross-Complaint</u> Defendant Mark Root’s Motion for Leave to File Cross-Complaint is GRANTED. Defendant Mark Root shall file the Cross-Complaint and serve it upon all named Cross-Defendants within 30 days of this ruling. <u>Standard for Leave to File Cross-Complaint</u> Code of Civil Procedure Section 426.50 provides that A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action. (Code Civ. Proc., § 426.50.) There is a liberal policy regarding granting leave to file cross-complaints. (See <i>Align Technology, Inc. v. Bao Tran</i> (2009) 179 Cal.App.4th 949, 967; Weil & Brown, Cal. Prac. Guide, Civ. Proc. Before Trial (The Rutter Group 2022) ¶ 6:557.) If the proposed cross-complaint is permissive, a party may file a cross-complaint “at any time before the court has set a date for trial.” (Code Civ. Proc., § 428.50, subd. (b).) However, if a party fails to file a permissive cross-complaint before the date set for trial, the party “shall obtain leave of court to file any cross-complaint,” which may be granted “in the interests of justice.” (Code Civ. Proc., § 428.50(c).)
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		On the other hand, if the proposed cross-complaint is compulsory, leave must be granted so long as defendant is acting in good faith. (Code Civ. Proc., § 426.50; Weil & Brown, Cal. Prac. Guide: Civ. Proc. before Trial (The Rutter Group 2022) ¶ 6:555.) A compulsory cross-complaint is a cross-complaint that is asserted against the plaintiff and related to the subject matter of the complaint. (Code Civ. Proc., § 426.30.) A cross-complaint is “related” to the complaint if it arises out of the same transaction, occurrence, or series of transactions or occurrences as the complaint. (Code Civ. Proc., § 426.10(c).) All other cross-complaints are permissive cross-complaints. In order to be related, there does not need to be “an absolute identity of factual backgrounds for the two claims, but only a logical relationship between them.” At the heart of this approach is the question of duplication of time and effort; i.e., are any factual or legal issues relevant to both claims?” (<i>Currie Medical Specialties, Inc. v. Bowen</i> (1982) 136 Cal.App.3d 774, 777, citations omitted, quoting <i>United Artists Corp. v. Masterpiece Prods.</i> (2d Cir. 1955) 221 F.2d 213, 216.) Claims that are only loosely related in that they involve some of the same parties and the same matter, directly or indirectly, are not logically related if the trial of the claims does not involve a duplication of time and effort due to the fact that there are factual and legal issues that are relevant to both claims. (See <i>ZF Micro Devices, Inc. v. TAT Capital Partners, Ltd.</i> (2016) 5 Cal.App.5th 69, 84.) Cross-complaints for equitable indemnity are virtually always transactionally related to the complaint that has been filed in the main action. (<i>Time for Living Inc. v. Guy Hatfield Homes</i> (1991) 230 Cal.App.3d 30, 38-39.) This is because “[a]n indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff.” (<i>Id.</i> at p. 39.)
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11	Cliq, Inc. vs. Capital Managers, LLC 30-2021-01220754	<u>Motions for Attorney's Fees and to Strike and/or Tax Costs</u> There is no full written tentative ruling at this time. The court will hear from the parties or their counsel, who shall be ready to address whether the court should refer the motions for attorney's fees and to strike and/or tax costs to a referee pursuant to Civil Procedure Code section 639. <u>Motion to Amend Judgment</u> Plaintiff Cardflex, Inc. d/b/a Cliq's Motion to Amend Judgment for Civil Code § 3287(b) Discretionary Interest is DENIED as moot. The motion is moot in light of the court's ruling denying discretionary prejudgment interest pursuant to Civil Code section 3287(b).